[5]For example, under the Essential Commodities Act, made by the Parliament on a concurrent subject, the executive power is vested in the Centre.

[6]This provision (the power of the states to entrust functions to the Centre) was added by the 7th Constitutional Amendment Act of 1956. Before that, only the Centre had the power.

[7]***Constituent Assembly Debates***, Volume VII, pp. 41-42.

[8]Entries—82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92A, 92B and 96.

[9]Entries—45, 46, 47, 48, 49, 50, 51, 53, 54, 56, 57, 58, 59, 60, 61, 62, 63 and 66.

[10]In this regard, the 101st Amendment Act of 2016 inserted Article 246-A in the Constitution.

[11]Originally, this limit was only ₹250 per annum. The 60th Amendment Act of 1988 raised it to ₹2,500 per annum.

[12]These provisions are contained in Article 286, as amended by the 101st Amendment Act of 2016.

[13]This amendment deleted Article 272 (Taxes which are levied and collected by the Centre and may be distributed between the Centre and the states).

[14]Entry 52 (taxes on the entry of goods into a local area for consumption, use or sale therein) and entry 55 (taxes on advertisements other than advertisements published in the newspapers and advertisements broadcast by radio or television) were omitted by the 101st Amendment Act of 2016.

[15]M.P. Jain: ***Indian Constitutional Law***, Wadhwa, Fourth Edition, pp. 342–43.

[16]Article 279-A(1) says that the President shall, within sixty days from the commencement of the Constitution (One Hundred and First Amendment) Act, 2016, by order, constitute a Council to be called the Goods and Services Tax Council.

[17]This function was added by the 73rd and 74th Amendment Acts of 1992 which have granted constitutional status on the panchayats and the municipalities respectively.

[18]In Re. Sea Customs Act (1963).

[19]The other two members of the committee were Dr. Lakshmanswamy Mudaliar and P.C. Chandra Reddy.

[20]B. Sivaraman and S.R. Sen were two other members of the Commission.

[21]The other four Members of the Commission were Dhirendra Singh (Former Secretary to the Govern ment of India), Vinod Kumar Duggal (Former Secretary to the Government of India), Prof. N.R. Madhava Menon (Former Director, National Judicial Academy, Bhopal and National Law School of India, Bangalore) and Dr. Amaresh Bagchi (Emeritus Professor, National Institute of Public Finance and Policy, New Delhi). With the passing away of Dr. Bagchi in February 2008, Vijay Shanker (Former Director, Central Bureau of Investigation, Government of India) was appointed in his place as a Member of the Commission in October 2008.

[22]***S.R. Bommai*** vs. ***Union of India*** (1994).

[23]*Annual Report 2021-22, Ministry of Home Affairs, Government of India, p. 246.*